

BEFORE THE
FEDERAL MARITIME COMMISSION

DOCKET NO. 24-23

SAMSUNG ELECTRONICS

AMERICA, INC.,

COMPLAINANT,

v.

HMM CO., LTD. F/K/A HYUNDAI MERCHANT MARINE CO.,
LTD. ,

RESPONDENT.

JOINT STATUS REPORT

Pursuant to the July 23, 2025 Amended Scheduling Order (“Scheduling Order”), Complainant, Samsung Electronics America, Inc. (“SEA”) and Respondent, HMM Co., Ltd. (“HMM”) (each a “Party” and collectively the “Parties”), submit this Joint Status Report. The Parties, by their respective undersigned counsel, have conferred and have endeavored to resolve any disagreements related to discovery. The Parties engaged in a meet and confer discussion to address discovery progress and a path forward on Thursday September 4, 2025 before submitting this Joint Status Report. Below the Parties submit the current status of their discovery obligations and all outstanding discovery disputes.

I. Documents Produced by the Parties

On July 11, 2025 the parties filed a Joint Status Report in which HMM proposed an amended schedule extending the discovery deadlines by 60 days. The Presiding Officer found good cause for an extension, and amended the Scheduling Order to require document production be completed by September 12, 2025. Since the issuance of the Scheduling Order, the Parties have been diligently working to finalize their respective productions and both parties anticipate meeting the September 12, 2025 deadline for production of documents.

1. SEA's production of documents is as follows:

SEA's last production of July 9 was reported in the last Joint Status Report. To date, SEA has produced a total of 553,876 documents, comprising of 2,872,885 pages.¹ SEA considered its production to be more or less complete, as of July 9, however SEA used its additional time to review its documents further to determine if more could be produced.

The only supplemental search that SEA conducted since the submission of the previous Joint Status Report was a search for electronic payment records relating to HMM shipments, which yielded 16,152 documents. SEA is still in the process of reviewing these documents.

In addition to these documents, SEA further reviewed an additional 120,000 documents, of which only about 3,000 documents remain to be reviewed, including review for privilege. Otherwise, SEA's privilege and quality control review is complete.

¹ In SEA's last Joint Status Report submission, SEA referred to a figure of 5,256,808 documents, which was also identified in the Presiding Officer's Scheduling Order. The 5,256,808 documents was intended to refer to the full number of documents that SEA received from its 20 custodians searched; however, the number of potentially responsive documents was 776,875 after SEA ran its subsequent searches. At the time the Parties submitted the previous joint status report, SEA had completely reviewed all 776,875 potentially responsive documents.

In regard to the number of pages of documents remaining for production, at current estimate SEA intends to produce an additional 51,000 documents by the production deadline.

2. HMM's production of documents is as follows:

HMM has searched its electronic systems for records responsive to SEA's discovery requests, including the email records of nineteen (19) custodians, which resulted in approximately five (5) terabytes of data. HMM does not anticipate identifying or searching additional custodians at this time. Since the filing of the last Joint Status Report, HMM has reviewed the approximately five (5) terabytes of data that was collected from custodians in the United States and Korea and, to date, has produced approximately 494,132 pages of documents to SEA. HMM anticipates an additional sizeable production will be completed before the September 12, 2025 deadline for the completion of document production. HMM has not undertaken any additional collection of materials in light of the comprehensive scope of the data which has already been marshaled and has continued to review the existing materials for responsiveness to SEA's discovery requests. However, many of the documents collected by HMM are written in Korean, which requires a time and resource intensive translation exercise and review. This factor has slowed HMM's production somewhat and continues to present a significant obstacle in reviewing documents for relevancy and completing production.

In its upcoming production from the data collected from its custodians, HMM completed an analysis of nearly 250,000 documents and expects to produce between 35,000 and 45,000 additional responsive documents following a final review of approximately 5,000 responsive documents for privilege and quality control.

II. Anticipated Number of Depositions for Each Party and Any Obstacles to Scheduling Those Depositions

A. Witnesses SEA Intends to Depose

SEA has proactively undertaken a comprehensive review of both HMM's production to date as well as its own production of documents and has identified potential HMM witnesses it intends to depose in this matter. The identified potential witnesses are located primarily across the United States, specifically Texas and California, as well as abroad in Korea. The current estimate for depositions is in and around 10, including a corporate designation witness, but is subject to further refinement upon review of HMM's impending substantial production. SEA anticipates that its review for refining its list of potential deponents will take significant time as HMM has expressed that the impending final production is substantial and will require translation of numerous correspondence in foreign language.

Witnesses HMM Intends to Depose

In the last Joint Status Report, HMM advised that it had identified six (6) potential SEA witnesses whose depositions it planned to conduct and HMM has not modified its position in this regard. HMM anticipates travel will be required by HMM's witnesses located in Korea, and that the depositions of HMM's U.S.-based employees or SEA witnesses may require some travel by counsel and therefore could pose associated scheduling challenges. HMM expects that with approximately sixteen (16) deposition witnesses identified, at least eight (8) of which are in Korea and will require a translator, depositions will take some time to arrange and conduct.

IV. Remaining Discovery Matters

On August 31, 2025 SEA submitted a letter to HMM's counsel outlining a number of discovery deficiencies identified in its review of HMM's production to date. In an effort to resolve

the discovery disputes amicably and without necessitating the submission of motions before the Presiding Officer, the Parties engaged in the meet and confer on September 4, 2025 to discuss the letter. In that call, counsel for the Parties discussed each deficiency identified therein and agreed to follow up on outstanding issues. Counsel for HMM advised that the forthcoming production will be substantial and should address a number of the outstanding deficiencies identified in the letter, but counsel agreed to further address any outstanding deficiencies that remain after the final HMM production is made.

Respectfully Submitted,

Dated: September 5, 2025

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